

3.1.7 Exceptions to the prohibition of reformatio in peius

a) Limited exceptions to the prohibition of reformatio in peius – G 1/99

Limited exceptions to the rule against reformatio in peius exist. In G 1/99 (OJ 2001, 381) the Enlarged Board of Appeal answered the question referred to it in T 315/97 (OJ 1999, 554), namely, "Must an amended claim which would put the opponent and sole appellant in a worse situation than if he had not appealed – e.g. by deleting a limiting feature of the claim – be rejected?".

The Enlarged Board held that **in principle** such a claim must be rejected. However, an exception to this principle might be made where the opposition division had allowed an inadmissible amendment. In the case at issue the opposition division had done just that with the agreement of the proprietor, who was thus not adversely affected by the decision and unable to appeal. The patent proprietor (respondent) had filed during the appeal proceedings a main request including the added (and unallowable) limiting feature, and an auxiliary request deleting it (and thus widening the claim). The Enlarged Board found that the main request had to be rejected because it did not meet the requirements of the EPC. Moreover, if the principle of reformatio in peius were to be applied without considering the specific circumstances of the case, the auxiliary request would also have to be rejected because it would put the opponent (appellant) in a worse situation than if it had not appealed. The only possible course the board could then take would be to revoke the patent, there being no further remedy for the proprietor. The proprietor would thus definitely lose any protection as a direct consequence of an inadmissible amendment being held allowable by the opposition division. The Enlarged Board considered it inequitable for the patent proprietor not to be given a fair opportunity to mitigate the consequences of errors of judgment made by the opposition division. The patent proprietor should thus be allowed to file requests in order to overcome this deficiency, as follows:

- in the first place, for an amendment introducing one or more originally disclosed features which limited the scope of the patent as amended;
- if such a limitation was not possible, for an amendment introducing one or more originally disclosed features which extended the scope of the patent as maintained, but within the limits of Art. 123(3) EPC 1973;
- finally, if such amendments were not possible, for deletion of the inadmissible amendment, but within the limits of Art. 123(3) EPC 1973, even if, as a result, the situation of the opponent was made worse.

See T 594/97, T 994/97, T 590/98, T 76/99 and T 724/99 for application of the principles enunciated in G 1/99.

b) Case law around G 1/99

According to T 809/99 a non-appealing patent proprietor is primarily restricted on appeal to defending the claims as maintained by the opposition division. If these claims are not

allowable, the principle of prohibition of reformatio in peius applies, i.e. an amended claim which would put the opponent and sole appellant in a worse situation than if it had not appealed must be rejected. The board went on to say that the only exception to this principle as set out in G 1/99 requires consideration of a particular sequence of possibilities for overcoming the deficiency presented by the claim(s). The first solution for overcoming the deficiency to be considered (an amendment introducing one or more originally disclosed limiting features which would not put the opponent (appellant) in a worse situation than it was in before it appealed) in fact concerns a limitation of the scope of the claim. Such limitation can also be achieved by deleting the alternative embodiment in the claim, which led to the deficiency. The proprietor's argument that the limitation to only one of the two alternatives would render the scope of protection too narrow for it to be commercially interesting is not a valid reason for dismissing this solution and proceeding to the next possible solution indicated in G 1/99.

The respondent (patent proprietor) in T 1194/06 conceded that a limitation according to the first route mentioned in the decision G 1/99 (OJ 2001,381) was possible but argued that this would result in a substantial restriction of the scope of the claims. The board was aware of the fact that the respondent would lose part of the protection afforded by the patent as maintained by the opposition division. It was, however, clear from G 1/99 that the principle of reformatio in peius had to be respected by the boards of appeal and that an exception to this principle should be construed narrowly. There was no reason to assume that the Enlarged Board of Appeal in G 1/99 considered even a substantial limitation of the scope of protection unacceptable.

The board in T 1033/08 made it clear that G 1/99 did not supersede G 9/92 and G 4/93, but was complementary thereto in that it gave directions for allowing an exception to the principle of prohibition of reformatio in peius as defined in these decisions. Certain conditions had to be fulfilled. A limiting feature introduced during the opposition procedure had to be deleted. The necessity for its deletion had to be caused by the appeal. This meant that the deletion was necessary and appropriate because it was related to a ground of opposition and caused by new facts, evidence or arguments put forward by the appellant, or because of a different evaluation of the situation by the board of appeal. Without the deletion, the patent would have to be revoked. It was not possible to overcome the objection by introducing new features which limit the scope of the patent as maintained. Only if these preconditions were fulfilled, might an objection be overcome by introducing new features which extended the scope of the patent as maintained, but within the limits of Art. 123(3) EPC according to the second option of G 1/99.

In T 2129/14 the inadmissible amendment concerned four elements of the claimed system and some relationships between them. Compared with claim 1 of the request found allowable by the opposition division, in claim 1 of the second auxiliary request three features were deleted. As a result, the protection was extended compared to the request on the basis of which the patent would have been maintained if the opponent and sole appellant had not appealed. Under such circumstances the opponent and sole appellant was in a worse situation than if it had not appealed. The Enlarged Board laid down the conditions under which the exception may be made. The board noted that the three conditions laid down by G 1/99 are sequential. Further, the board noted that in claim 1 of

the second auxiliary request features had been added which also involved some relationships between the four elements of the system. In the board's opinion, each of the requirements lost by deleting the inadmissible amendment had to be considered together with the added features, in the light of the conditions established in G 1/99. The board came to the conclusion that the amendments fell within the conditions for an allowable exception under G 1/99, allowing the deletion of the former inadmissible amendments, and were therefore allowable.

c) Remittal to the department of first instance

According to T 1843/09 (OJ 2013, 502) the prohibition of reformatio in peius as far as it entails a procedural limitation of the proprietor's liberty to change by way of amendments the scope of protection sought prevails "in principle" (G 4/93, OJ 1994, 875) until the final settlement of the opposition case and, therefore, also in any proceedings, including further appeal proceedings, subsequent to a remittal under Art. 111 EPC. The board went on to say that it is clear from G 1/99 that exceptions to the principle of the prohibition of reformatio in peius are a matter of equity in order to protect the non-appealing proprietor against procedural discrimination in circumstances where that prohibition would impair the legitimate defence of its patent. Therefore, exceptions are not limited to the situation specifically dealt with in G 1/99. Rather, the equity approach as taken by the Enlarged Board of Appeal covers, beyond an error of judgment by the opposition division, any change of the factual and/or legal basis on which limitations have been made by the proprietor prior to the appeal by the opponent as the sole appellant, provided the proprietor would be prevented by the prohibition on reformatio in peius from adequately defending its patent against new facts and objections introduced into the proceedings at the appeal stage.

In T 24/13, the appellant had asserted that a remittal under Art. 111 EPC would also put it at a disadvantage as the proprietor might possibly be granted a broader patent. The board disagreed because the prohibition on reformatio in peius applied equally in opposition proceedings resumed after such remittal (see T 1843/09, OJ 2013, 508; T 1033/08).

d) Lack of clarity

The three options given in G 1/99 were set out with regard to the requirement of Art. 123(2) EPC. According to T 648/15 these options could be applied in a similar way when dealing with the requirement of Art. 84 EPC (see also T 1380/04). The board further noted, that the three options given in G 1/99 do not apply independently of one another and cannot be chosen ad libitum. Indeed, they are set out in such a way so as to indicate a particular sequence of options for overcoming the deficiency presented by a claim.

In T 974/10 the board emphasised that the Enlarged Board of Appeal had stated in G 1/99 that, "... if the patent cannot be maintained **for reasons which were not raised at the first instance**, the non-appealing proprietor deserves protection for reasons of equity". As, in the case at issue, the clarity objection was raised by the board for the first time in the appeal, the respondent had to be allowed to file amendments as foreseen in decision G 1/99, which decision gave due regard to the principle of equity.

In T. 1845/16, the board concluded that making an exception to the prohibition of reformatio in peius in line with G. 1/99 was warranted. The Enlarged Board of Appeal had held there that such an exception to the otherwise binding principle of the prohibition of reformatio in peius could be allowed for reasons of equity but was to be construed narrowly, stipulating that an impermissible feature could be deleted only if there was no other option for amendment that was less detrimental to the opponent. In the case in hand, the board could not identify any such option, nor had the appellant argued anything to that effect. Consequently, there was justification for making an exception to the prohibition of reformatio in peius and permitting the patent proprietor to overcome the lack of clarity in its main request by making the amendments to claim 1 requested in its auxiliary request 1.

e) Causal link

In T. 61/10 the board pointed out that the existence of a causal link between the limiting feature to be deleted and the new situation arising on appeal was a necessary precondition for justifying an exception to the principle of prohibition of reformatio in peius for reasons of equity. In G. 1/99, T. 1843/09 and T. 1979/11 this condition was fulfilled. However, in the case before the board, the precondition was not fulfilled, so a departure from the principle of prohibition of reformatio in peius based on analogies with the cases cited was not justified.

f) Undisclosed disclaimer

In T. 2277/18, the respondent (patent proprietor) requested that the patent be maintained as granted or, alternatively, in the version as amended by the opposition division. Compared with the version as granted, independent claim 1 contained a disclaimer that had not been disclosed in the version as originally filed. As per G. 1/03 (OJ 2004, 413), a disclaimer should not remove more than is necessary to restore novelty. However, the board held that the disclaimer in the maintained version of the contested patent had removed more than was necessary. On the prohibition of reformatio in peius, the board stated that the requirements laid down in G. 1/99 for an admissible exception to the prohibition of reformatio in peius also applied when the inadmissible amendment was an undisclosed disclaimer. The question in this case was whether, in line with the first option from G. 1/99, adding originally disclosed features that limited the scope of the patent as maintained could overcome the established deficiency. The board found that it could, since the application as originally filed disclosed a particular implant made of a specific Mg-Zn-Ca alloy. Adding the features from this example would further limit the scope of the patent compared with the version as maintained while simultaneously making the excessively broad and so inadmissible disclaimer superfluous and thereby overcoming the deficiency it had created.

3.1.8 Reformatio in peius and lack of cross-appeal in the EPC

According to an obiter dictum in T. 239/96, the board took the view that, in the absence of a provision on cross-appeal (in German "Anschlussbeschwerde"), reformatio in peius could not be ruled out altogether under the EPC, as it might serve as a means of avoiding unnecessary litigation, while still satisfying the legitimate expectations of the parties for a

fair hearing. The board found that this deficiency in the EPC (i.e. the lack of a cross-appeal) was of prime importance when considering the respondent's procedural position and the issue of *reformatio in peius*.

3.2. Subject-matter under examination

3.2.1 Primary object of the appeal proceedings – Article 12(2) RPBA 2020

As set out in Art. 12(2) RPBA 2020, since the primary object of the appeal proceedings is to review the decision under appeal in a judicial manner, a party's appeal case shall be directed to the requests, facts, objections, arguments and evidence on which the decision under appeal was based. In the explanatory remarks to Art. 12(2) RPBA 2020 (Supplementary publication 2, OJ 2020) it is stated that this paragraph provides a general definition of the nature and scope of the appeal proceedings in accordance with the established case law. The boards of appeal constitute the first and final judicial instance in the procedures before the European Patent Office. In this capacity, they review appealed decisions on points of law and fact.

In T 1604/16 the board referred to the explanatory remarks to Art. 12(2) RPBA 2020 that the boards have competence to review appealed decisions in full, including points of law and fact. This was in accordance with Art. 6 ECHR, which stipulates that there must be at least one judicial instance that can review a case in full, i.e. the law and the facts, given that the boards of appeal are the only judicial body to review decisions by the departments of first instance of the European Patent Office. The board was well aware that there is case law on a restriction of the boards' competence when reviewing discretionary decisions taken by the departments of first instance in certain circumstances (G 7/93, OJ 1994, 775, and case law based on this decision). However, it did not consider the evaluation of evidence to be a discretionary decision. See also chapter V.A.3.4 "Review of first-instance discretionary decisions" below.

3.2.2 Complete case on appeal

Under Art. 12(3) RPBA 2020, the statement of grounds of appeal and the reply must contain a party's complete appeal case. Accordingly, they must set out clearly and concisely the reasons why it is requested that the decision under appeal be reversed, amended or upheld, and should specify expressly all the requests, facts, objections, arguments and evidence relied on.

The board has a discretion not to admit any submission by a party that does not meet the requirements of Art. 12(3) RPBA 2020, see Art. 12(4) RPBA 2020. Art. 12(3) RPBA 2020 essentially corresponds to Art. 12(2) RPBA 2007.

In T 2457/16, the patent proprietor submitted a large number of auxiliary requests with the statement of grounds of appeal. The board found that the patent proprietor had not explained the amendments made in these auxiliary requests or their purpose, leaving the board and the opponent unsure as to the order in which the auxiliary requests were to be examined, precisely what amendments had been made in the requests and the reasons